24CV00084 Stacy R Kelly vs Sandpiper Property Management et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-05

Motion: CMC; Motion for Terminating and Monetary Sanctions

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Tentative Ruling: Stacy R Kelly vs Sandpiper Property Management et al

Case Number

24CV00084

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/05/2026 - 10:00

Nature of Proceedings

CMC; Motion for Terminating and Monetary Sanctions

Tentative Ruling

For all reasons discussed herein, defendants George and Heidi Lissauer’s motion for terminating and monetary sanctions against plaintiff Stacy R. Kelly is partially granted as follows:

Terminating sanctions are denied and will not be imposed.

Plaintiff is ordered to serve complete, verified, code-compliant responses to all outstanding discovery, other than the requests for admission that were deemed admitted, without objections, no later than June 18, 2026.

Monetary sanctions in the amount of $3,000.00, for the necessity of bringing the present motion are awarded in favor of George and Heidi Lissauer and against Stacy R. Kelly, to be paid by Ms. Kelly to the Lissauers’ counsel no later than July 31, 2026.

Background:

This action commenced on January 8, 2024, when plaintiff Stacy R. Kelly, then self-represented, filed here original complaint against defendant Sandpiper Property Management ("Sandpiper") for negligence, breach of contract, breach of implied warranty of habitability, nuisance, negligent infliction of emotional distress, and constructive eviction. The original complaint is devoid of any facts describing the action.

On September 23, 2024, now represented by counsel, plaintiff filed her operative first amended complaint ("FAC"), against Sandpiper, George Lissauer, individually and as trustee of the George and Heidi Lissauer Trust dated October 17, 1996, and Heidi Lissauer, individually and as trustee of the George and Heidi Lissauer Trust dated October 17, 1996, for: (1) Negligence; (2) Breach of Contract; (3) Breach of Implied Warranty of Habitability; (4) Nuisance; (5) Negligent and Willful Infliction of Emotional Distress; (6) Violation of Civil Code section 1940.2 - Tenant Harassment; (7) Violation of Civil Code section 1942.5 - Retaliation; and (8) Violations of Santa Barbara Municipal Code.

Plaintiff alleges, by way of the FAC, that she was previously a tenant residing at 850 Highlands Drive #4, Santa Barbara (the "property"), pursuant to a written residential rental agreement entered into on April 2, 2019. (FAC, ¶ 9.) Sandpiper was the property manager of the property and the Lissauers were the owners of the property. (Ibid.)

Beginning in July 2023, the property began suffering from defects that rendered it untenantable, including the presence of mold and asbestos throughout the property. (FAC, ¶ 10.) Despite being given notice of the conditions, defendants failed to remedy the situation and, instead, retaliated against plaintiff forcing her to vacate the property. (FAC, ¶ 11.) The condition of the property also seriously affected plaintiff's physical and mental health, including stress, anxiety, pulmonary issues, lethargy, internal bleeding, and poor eyesight. (FAC, ¶ 13.)

On November 4, 2024, the Lissauers answered the FAC with a general denial and 25 affirmative defenses.

On December 13, 2024, Sandpiper answered the complaint with a general denial and 16 affirmative defenses.

Also on December 13, 2024, Sandpiper cross-complained against George Lissauer, individually, for breach of contract and indemnity.

On January 22, 2025, George Lissauer answered Sandpiper's cross-complaint with a general denial and 14 affirmative defenses.

On February 3, 2025, the Lissauers cross-complained against Sandpiper for equitable indemnity, and contribution and apportionment.

On March 12, 2025, Sandpiper answered the Lissauers' cross-complaint with a general denial and 14 affirmative defenses.

On May 9, 2025, plaintiff's attorney of record was relieved as her counsel and plaintiff was again self-represented.

On October 10, 2025, the court made the following discovery orders in favor of the Lissauers and against plaintiff:

"The following motions were filed and served on June 13, 2025: (1) defendant George Lissaur's motion to compel plaintiff Stacy R. Kelly to respond to special interrogatories, set one; (2) defendant Heidi Lissaur's motion to compel plaintiff Stacy R.

Kelly to respond to special interrogatories, set one; (3) defendant George Lissaur's motion to deem admitted requests for admission to plaintiff Stacy R. Kelly; (4) defendants George and Heidi Lissaur's motion to compel plaintiff Stacy R. Kelly to respond to form interrogatories, set one; (5) defendants George and Heidi Lissaur's motion to compel plaintiff Stacy R. Kelly to respond to form interrogatories, set two; (6) defendants George and Heidi Lissaur's motion to compel plaintiff Stacy R. Kelly to respond to form interrogatories, set three; (7) defendant George Lissaur's motion to compel plaintiff Stacy R. Kelly to respond to request for production of documents, set one; and (8) defendant Heidi Lissaur's motion to compel plaintiff Stacy R. Kelly to respond to request for production of documents, set one. No opposition or other response has been filed.

"Each motion is granted. Plaintiff Stacy R. Kelly shall serve verified responses to the respective special interrogatories, form interrogatories, and requests for production of documents, without objection and in a form complying with the Code of Civil Procedure, on or before October 31, 2025.

"In addition, unless plaintiff Stacy R. Kelly appears at the hearing of these motions and shows that plaintiff has served, before the hearing on the motion, a proposed response to the request for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220, the matters set forth in defendant George Lissaur's requests for admission to plaintiff Stacy R. Kelly will be deemed admitted." (Oct. 10, 2025, Minute Order.)

Plaintiff did not serve her discovery responses by the court ordered deadline. (Straub decl., ¶ 39.)

On February 11, 2026, following extensive meet and confer efforts, the Lissauer's filed the present motion for terminating sanctions and monetary sanctions for plaintiff's failure to comply with the Court's orders.

On February 17, 2026, plaintiff's current attorney substituted into this action as plaintiff's attorney of record.

On May 22, 2026, plaintiff, through her current attorney, filed opposition to the motion, representing that as of the filing of the opposition, plaintiff has served responses to some of the discovery requests and anticipates serving further responses and provide written verifications. Plaintiff further argues that it was difficult for her to respond to the discovery because she was homeless for over a year and is currently incarcerated.

On June 2, 2026, plaintiff, through her attorney, late-filed a supplemental declaration indicating that all discovery, with the exception of the requests for admissions that were deemed admitted, had been responded to.

Analysis:

"California's pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side's evidence, with all doubts about discoverability resolved in favor of disclosure." (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1119.)

Sanctions available for disobeying a court order to provide discovery responses include: (1) Monetary sanctions; (2) Issue sanctions; (3) Evidence sanctions; (4) Terminating sanctions; and (5) Contempt. (Code Civ. Proc., § 2023.030.)

There is no dispute that plaintiff has disobeyed the court's order to provide discovery responses. As plaintiff's supplemental declaration was late-filed, and the Lissauers have not had the opportunity to verify the receipt of the discovery responses, plaintiff will be ordered to provide responses to any of the requests, other than the requests for admissions that were deemed admitted, that were not responded to, if any.

California discovery law authorizes a range of penalties for a party's misuses of the discovery process, including monetary sanctions, evidentiary sanctions, issue sanctions, and terminating sanctions. (§§ 2023.010, 2023.030; Los Defensores, Inc.

v. Gomez (2014) 223 Cal.App.4th 377, 390; Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.)

“A court has broad discretion in selecting the appropriate penalty” for a party’s refusal to obey a discovery order. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.)

“The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’ [Citation.]” (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702.)

“While sanctions are discretionary, the term judicial discretion implies absence of arbitrary determination, capricious disposition, or whimsical thinking. It imports the exercise of discriminating judgment within the bounds of reason. To exercise the power of judicial discretion, all the material facts must be known and considered, together also with the legal principles essential to an informed, intelligent and just decision. [Citation.] Therefore, the court must examine the entire record in determining whether the ultimate sanction should be imposed. [Citations.]” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 796 (Deyo).)

“In exercising this discretion, a variety of factors may be relevant, including, 1) the time which has elapsed since interrogatories were served, 2) whether the party served was previously given a voluntary extension of time, 3) the number of interrogatories propounded, 4) whether the unanswered questions sought information which was difficult to obtain, 5) whether the answers supplied were evasive and incomplete, 6) the number of questions which remain unanswered, 7) whether the questions which remain unanswered are material to a particular claim or defense, 8) whether the answering party has acted in good faith, and with reasonable diligence, 9) the existence of prior orders compelling discovery and the answering party’s response thereto, 10) whether the party was unable to comply with the previous order of the court, 11) whether an order allowing more time to answer would enable the answering party to supply the necessary information, and, 12) whether a sanction short of dismissal or default would be appropriate to the dereliction.” (Deyo, supra, 84 Cal.App.3d at pp. 796, 797.) “Of course, each case must be decided on its own facts and, while lesser sanctions are normally imposed, the ultimate sanction is permissible where the litigant persists in refusing to comply with his discovery obligations.” (Ibid.)

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) A terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful, and the record clearly shows lesser sanctions would be ineffective. (Lopez v. Watchtower Bible and Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604–605.)

Here, applying an incremental approach, the court finds it is premature to issue terminating sanctions. No lesser sanctions have yet been imposed because they were not requested in conjunction with the underlying motions to compel. Terminating sanctions would not be proper as a first sanction and will not be imposed at this time.

Monetary Sanctions

The Lissauers seek monetary sanctions of $6,137.00 for fees incurred in preparation and filing of the present motion.

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).)

“ ‘ “Only two facts are absolutely prerequisite to imposition of the sanction: (1) there must be a failure to comply [with a valid discovery order] . . . and (2) the failure must be willful . . .” ’ ” [Citations].” (Kayne v. The Grande Holdings Limited (2011) 198 Cal.App.4th 1470, 1474.)

Here, there is no dispute that plaintiff failed to comply with the court orders. Despite her stated excuses, the court finds that the refusal to comply was willful. Plaintiff was given numerous opportunities to comply with the court orders even after the deadline had expired.

The Lissauers’ counsel declares that his hourly rate is $295, that he spent 16.6 hours preparing the motion, that he anticipates an additional four hours reviewing opposition, preparing a reply, and participating in the hearing on the motion. The $60.00 filing fee is also requested to be reimbursed.

Based on the court’s experience, the court finds that the claimed time is somewhat excessive. The court will award the Lissauers the reasonable amount of $3,000.00 in sanctions for the necessity of bringing the motion.

Judges

Judge Donna D. Geck

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